

Privacy Policy
And
General Information
on the Implementation of Data Protection Requirements According
to Articles 12–14 of the General Data Protection Regulation for the
online service Aufenthaltserlaubnis Hamburg / Residence Permit
Hamburg of the Free and Hanseatic City of Hamburg

Almost all residents and businesses will encounter administrative authorities sooner or later, for example when applying for an identity card or a residence permit. As part of this procedure, it is necessary to process personal data.

In an administrative context, data is considered personal if it can be attributed to a natural person, a legal entity (e.g. association or joint-stock company), a partnership or an estate. Data that is not personal data is considered anonymised data.

When personal data is processed by administrative authorities, it means that this data may be collected, stored, used, transmitted, made available for retrieval or deleted by the administrative authorities. Personal data is generally processed only for the purpose for which it was collected. Processing for a different purpose will only take place if this is permitted by law or if you have given your consent.

You are currently using an online service provided by the Free and Hanseatic City of Hamburg. This online service is an electronic form that enables you to contact the local authority digitally.

This document contains information about what personal data may be collected, from whom it is collected and what may happen to this data. Readers will also find details about their rights regarding data protection matters and who to contact in such cases.

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1. About Us

We are:

Behörde für Finanzen und Bezirke

Amt Hamburg Service

Caffamacherreihe 1-3

D-20355 Hamburg

The Foreigners' Affairs offices provide support to foreign residents who are registered as having their main residence in Hamburg and who hold a secure residence status. They make decisions on the granting of residence permits and issue the necessary certificates under immigration law.

Behörde für Inneres und Sport

Amt für Migration

Hammer Straße 30-34

D-22041 Hamburg

The Migration Office (Amt für Migration) assists foreign nationals who do not yet hold a residence permit in Germany, as well as those entering Germany for the purpose of education or employment. In addition, it processes applications for naturalisation, name changes and matters relating to traffic fines.

We are jointly responsible under data protection law for the operation of the online service.

We process your data based on Section 25 of the Act on Data Protection and the Protection of Privacy in Telecommunications and Digital Services and Article 6(1)(e) of the General Data Protection Regulation (GDPR) in conjunction with Sections 1 and 2(3) of the Online Access Act and Section 4 of the Hamburg Data Protection Act.

2. Contact

If you have any questions regarding data protection matters, please contact the data protection officer responsible for the relevant authority:

Behörde für Finanzen und Bezirke

Amt Hamburg Service

Behördliche Datenschutzbeauftragte

Caffamacherreihe 1-3

D-20354 Hamburg

E-Mail: DSB@hamburgservice.de

Behörde für Inneres und Sport

Datenschutzbeauftragter

Johanniswall 4

D-20095 Hamburg

E-Mail: bdsb@bis.hamburg.de

3. Purposes of Processing Personal Data

Your data is collected and processed in accordance with, among other things, the Residence Act (Aufenthaltsgesetz) and the Freedom of Movement Act (Freizügigkeitsgesetz).

Example of processing:

In order to issue you with a personnel document, we will need details such as your personal details, your address, and your height and eye colour.

4. Specification of Processed Personal Data

For our purposes, we collect the following personal data:

- surname,
- Former surname,
- Given name(s),
- Academic degree,
- Date of birth,
- Legal guardian if applicable (including their surname, given name(s), academic degree, address, date of birth, legal gender, date of death, as well as bans on information and specific notes on the ban)
- Current citizenships or nationalities,
- Eye colour,
- Height,
- Telephone number and email address,

- Details of accommodation and costs, in order to carry out the statutory calculation of living expenses and to determine which authority is responsible within the Free and Hanseatic City of Hamburg and Germany,
- Marital status; for married persons or those in a civil partnership, also the date, place and certificate of marriage or the establishment of the civil partnership; and, if the marriage or civil partnership was entered into abroad, also the country; divorce,
- regarding the spouse or partner (surname, first names, maiden name, academic title, date of birth, residence permits, current addresses within the registration authority's jurisdiction, and the address of the last sole or main residence outside the registration authority's jurisdiction, date of death),
- regarding minor children (surname, first names, date of birth, address in the UK),
- Issuing authority, date of issue, expiry date and serial number of the residence permit, the recognised and valid passport or passport substitute, the residence permit issued by another country,
- Issuing authority, date of issue, expiry date and serial number of the visa,
- Date of arrival,
- Finances, including payslips, proof of sufficient means to support oneself, proof of adequate pension provision,
- Health insurance,
- Language course and certificate,
- Qualifications and employment, supplementary sheets C and D,
- Declaration regarding the assumption of costs pursuant to Section 16e (1)(5) of the Residence Act.

To enforce the Residence Act (Aufenthaltsgesetz) and provisions of other laws concerning foreign nationals, we may collect personal data insofar as this is necessary for the fulfilment of the tasks under this Act and provisions of other laws concerning foreign nationals.

‘Sensitive data’, meaning particular categories of personal data, shall only be collected if necessary for specific procedures.

For example, necessary information may be requested from citizens as part of the process of checking the conditions for a ban on disclosure of information.

In addition, we may collect personal data from third parties if they are legally obliged to report to the authorities.

For Example:

If you have registered your residence in Hamburg, the relevant authority (see 1. About Us) will be notified so that your details on the foreign nationals' register can be updated accordingly.

If a matter cannot be resolved with the residents' help, we may collect personal data relating to the residents through asking third parties (e.g. requests for information to the landlord, etc.).

We may also process publicly available information (e.g. from newspapers, public registers, or public announcements).

5. Processing of Personal Data

Personal data is stored and used as a basis for further administrative steps in computer assisted administrative procedures. These procedures include technical and organisational security measures to protect all personal data against unintentional or unlawful destruction, loss or alteration, and against unauthorised disclosure or access. Our security standards are always in line with the latest technological developments.

6. Disclosure of Personal Data to Third Parties

Any personal data that has been provided to us in an administrative procedure may only be disclosed to other persons or bodies (e.g. health insurance funds, pension insurance institutions) with personal or legal consent.

For Example:

Pursuant to Section 90 (5) of the Residence Act, the Foreigners' Registration Office shall, upon request, provide the bailiff with information regarding a person's whereabouts for the purposes specified in Section 755 of the Code of Civil Procedure.

7. Data Storage Duration

Storage duration complies with the applicable legal provisions.

8. Residents' Rights (Access Rights, Right to Object, etc.)

Residents have various rights under the General Data Protection Regulation. Further details are provided in Articles 15 to 18 and 21 of the General Data Protection Regulation.

- **Right of Access by the Data Subject**

Residents may request information about their own personal data that we process. When requesting access to their information, residents should specify their concern in order to make it easier for us to compile the necessary data. If possible, the request should include information on the specific administrative procedure and its current stage.

- **Right to Rectification**

If the information in question is incomplete or no longer accurate, residents can request that it be completed or corrected.

- **Right to Erasure**

Any resident may request the deletion of his or her personal data. The entitlement to deletion depends on whether we still need the personal data to fulfil our legal obligations.

- **Right to Processing Restriction**

Any resident has the right to obtain restriction on the processing of his or her personal data. This restriction shall not preclude processing where there is an important public interest.

- **Right to Object**

Any resident shall have the right to object, on grounds relating to his or her particular situation, at any time, to the processing of his or her personal data. We cannot, however, comply with this objection if there is an overriding public interest in the processing or if we are legally obliged to process the data.

- **Right to Data Portability**

You have the right to receive the personal data concerning you, which you have provided to the controller, in a structured, commonly used and machine-readable format.

- **Right to Lodge a Complaint**

Anyone who believes that we have not addressed his or her concern or not addressed it fully may file a complaint with the local data protection authority:

Hamburg Commissioner for Data Protection and Freedom of Information

(Hamburgische Beauftragte für Datenschutz und Informationsfreiheit)

Ludwig-Erhard-Straße 22, D-20459 Hamburg

Tel.: +49 40 / 4 28 54 - 40 40

E-Fax: +49 40 / 4 28 54 – 40 00

E-Mail: mailbox@datenschutz.hamburg.de

General Information Regarding These Rights

In some cases, we cannot or are not allowed to comply with certain requests. If legally permissible, we will always state the reason for refusal.

Still, we will always respond within one month of receiving any enquiry. Should we need more than a month to sort out the final details, we will send out an interim message.